



Modifications of this form must be clearly shown.

This Contract is recommended for the sale of improved or unimproved residential real estate. If used for new construction or commercial real estate, appropriate modification is required.



CAUTION: This Contract contains an Attorney Approval Contingency. Read Paragraph ATC1 carefully.
CAUTION: Substituting pages of a signed Contract could result in an unenforceable Contract or a Fraud Claim.

CONTRACT

Date: 06/16/2026 ("Contract Date")

1. PARTIES. The parties are as follows (individually a "Party" and collectively the "Parties"):

(A) Seller: Seneca Street 3887 ("Seller")
Address: 3887 Seneca St Buffalo NY 14224-3489 (**Property address if blank**)

(B) Purchaser: IJB ENTERPRISES INC. ("Purchaser")
Address: 3887 Seneca St, Buffalo, NY 14224-3489

2. AGREEMENT. Seller shall sell and Purchaser shall purchase the items described in Paragraphs 3(A) through 3(D) ("Property") and the items described in Paragraph 3(E)(1) - (5) as being included ("Included Items") on the terms stated in this contract, including Paragraphs ATC1 through ATC14 of the attached BAEC/BNAR approved Additional Terms and Conditions (Rev. 03/15/18) ("ATC"), as well as the Riders and attachments referenced in Paragraphs 3(B) and 16 which all Parties have signed and/or initialed (including all changes) as applicable ("Contract"). This Contract uses defined terms shown as an initial capitalized word(s), initially in quotes and parentheses or as defined in Paragraph ATC13. Unless otherwise indicated, all paragraph references are to paragraphs of this Contract. References to paragraph numbers which are preceded by letters refer to the corresponding riders listed in Paragraph 16. All defined terms and paragraph references used in this Contract shall have such meanings throughout, and in all modifications of, this Contract.

3. PROPERTY.

(A) Address. No. & Street: 3887 Seneca St Zip Code: 14224-3489
County of Erie ("County"), Town/City of Buffalo, Village of: West Seneca, NY.
Tax Map Identifier (Section-Block-Lot Number) 146800-143-070-0006-005-000

(B) Additional Description.
☐ Per attached map/survey map ☐ Per attached legal description ☒ Approximate Lot Size: 64x173
☐ Includes interest in a homeowners' association: See Condominium/Homeowners' Association Rider
☐ Condominium Unit: See Condominium/Homeowners' Association Rider

(C) Current Uses/Improvements: ☐ Family dwelling ☐ with car garage
☐ Vacant Land: See Vacant Land Rider. ☒ Additional uses/improvements (specify): Multi-Use Commercial

(D) Land and Other Items. Unless excluded in Paragraph 3(E), the following items are included:
(1) All land; trees; buildings; improvements; oil, gas and mineral rights; and rights appurtenant to the land.
(2) All fixtures and property attached or appurtenant to the land, buildings and improvements including: all heating, air conditioning (except window units), plumbing (including septic systems, well pumps, water pumps, sump pumps, water filtration systems and water softeners), electrical and mechanical systems (including hard wired electricity generators); plumbing fixtures; lighting fixtures (including bulbs) and landscaping (except free standing planters); matching kitchen islands; storm windows, storm doors, screens and awnings; exterior T.V. antennas and satellite dishes; garage door openers; weather vanes; window boxes; mail boxes; utility sheds; fences; underground electric pet fencing and equipment; flag poles; in-ground or garage mounted basketball backboards and poles; gas operated post-type outdoor grills; in-ground and above-ground pools and related equipment; wood-burning stoves, oil and gas fired space heaters, fireplaces, fireplace inserts, screens (including free-standing screens), grates and glass enclosures; wall to wall carpeting and attached runners; linoleum; garbage disposals; ceiling fans, exhaust fans and hoods; security systems; intercom systems; central

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vacuuming systems (including all hoses and attachments); smoke detectors; carbon monoxide detectors; mirrors; window shades, curtain rods and traverse rods; all styles of window and door blinds; cabinet and wall-mounted appliances; all transferable trash and recycling containers provided by a municipality or service company; and all motors, transmitters, receivers, controls, system operation keys, remote units and all component parts.

- (3) If presently on the Property and unless free-standing, all cabinets, shelving, dishwashers, refrigerators, ovens, cooktops, ranges, microwave ovens, trash compactors, humidifiers, dehumidifiers and air filtration systems.
- (4) Seller's rights in and to public and private streets, highways, alleys, driveways, easements and rights of way.
- (5) Seller's rights to receive all future rents and royalties due under any lease, agreement or tenancy.

(E) Included and Excluded Items. The following items are included or excluded as follows: **("Excluded" if blank)**

- (1) Hot tub(s)/spa(s) and related equipment are ☐ Included; ☐ Excluded; ☒ N/A
- (2) Outdoor play set(s) are ☐ Included; ☐ Excluded; ☒ N/A
- (3) Speakers (recessed, wall mounted and outdoor) and speaker wiring are .. ☐ Included; ☐ Excluded; ☒ N/A
- (4) The following items are included: all appliances set forth in Paragraph RPR1, _____

All Appliances

which are included with no increase in the Purchase Price and which nevertheless must be left:

- ☒ (a) in substantially the same condition as of the date of the Property Inspection (as defined in Paragraph 9) or if none is conducted, as of the Contract Date, subject to the obligations in Paragraph 5 ("As-is"); or
- ☐ (b) in the condition existing at Closing (as defined in Paragraph 4(C)) **("a" if blank)**.
- (5) Unless specifically included in Paragraph 3(E), Paragraph 20 or a rider or addendum to this Contract, the following items are excluded: furniture; household furnishings; televisions, including brackets; and also _____

4. PURCHASE PRICE. The purchase price ("Purchase Price"), payable in U.S. Dollars as follows, is \$ 500,000.00

(A) Seller's Concession. At Closing, Seller shall credit to Purchaser the sum of **("0" if blank)** ("Seller's Concession") \$ 50,000.00

(B) Deposit. The following deposit ("Deposit"), payable to and held in escrow by Kreag Ferullo ("Escrow Agent") at Steiner & Blotnik ("Bank") \$ 10,000.00

- ☐ (1) When Purchaser signs this Contract;
- ☒ (2) Within 2 Business Days (as defined in Paragraph ATC13(C)) following:
 - ☐ (a) The Effective Date (as defined in Paragraph ATC13(D)).
 - ☐ (b) Satisfaction or waiver of the Attorney Approval Contingency (as defined in Paragraph ATC1).
 - ☐ (c) Satisfaction or waiver of the Property Inspection Contingency (as defined in Paragraph 9(A)(1)) or the Investigation Contingency (as defined in Paragraph VLR4(B)).
 - ☒ (d) The later of (b) and (c).

The Deposit and any additional deposit paid pursuant to this Contract, if applicable (collectively "Deposits"), shall be deposited by Escrow Agent with the Bank within 5 Business Days following receipt. Escrow Agent will promptly notify Seller's attorney if any Deposits are not received on time. In the event any of the Deposits are not received by Escrow Agent within 3 Business Days after payment is due, Seller may cancel this Contract at any time prior to Escrow Agent's receipt of whichever of the Deposits was past due.

(C) Adjusted Balance. Upon delivery of the deed ("Closing"), the Purchase Price less (i) the Seller's Concession, **and** (ii) the Deposits, subject to closing adjustments and credits as provided in this Contract ("Adjusted Balance").

5. CONDITION OF PROPERTY AND INCLUDED ITEMS.

- (A)** Except as otherwise provided in this Contract, until Closing, Seller shall, at Seller's expense:
 - (1) maintain the Property and Included Items in substantially the same condition as of the date of the Property Inspection, if any, or if no Property Inspection is conducted, as of the Contract Date;
 - (2) perform ordinary lawn and landscape maintenance and snow removal; **and**
 - (3) maintain all utilities in service that are required for the operation of the heating, air conditioning, plumbing, security and electric systems.
- (B)** Except as provided in the Property Condition Disclosure Statement provided by Seller before Purchaser signed this Contract ("PCDS") and in Paragraphs 5(A), 5(C), 6, 8, 13, ATC4 and, if applicable, ADR1, LBPR4 and VLR2, Seller makes no representations, warranties or disclosures as to the condition of the Property and Included Items.
- (C)** Subject to (i) any rights of Purchaser under Paragraphs 9, 12(D) and LBPR5(B), (ii) Seller's obligations under Paragraphs 5(A), 5(D), 12 and 13, and (iii) Seller's obligation to complete all repairs agreed to in writing, Purchaser shall accept the Property in substantially the same condition (a) as of the date of the Property Inspection, if any, or if no Property Inspection is conducted, as of the Contract Date, and (b) as disclosed in the PCDS, if any, and shall accept the Included Items as set forth in Paragraph 3(E)(4).

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(D) The Property shall be in "broom clean" condition and free of debris on the date of Closing.

6. SELLER'S DISCLOSURES. Seller makes the following disclosures to the best of Seller's knowledge:

- ☒ **Yes** ☐ **No** (A) **Title.** Seller has title to the Property, subject to the provisions of Paragraph ATC5, and Seller owns the Included Items.
- ☐ **Yes** ☒ **No** (B) **Agricultural District.** The Property is located partially or wholly within an agricultural district. If "Yes", see *Agricultural District Rider*.
- ☐ **Yes** ☒ **No** (C) **Utility Surcharge.** The Property is subject to a utility (e.g. gas, electricity, water) surcharge. If "Yes": Type/Purpose: _____ Amount: _____ Payable (i.e. monthly, yearly): _____
- ☐ **Yes** ☒ **No** (D) **Water Well.** The Property has a private water well and/or other non-public water supply.
- ☒ **Yes** ☐ **No** (E) **Public Water.** The Property is connected to a public water supply.
- ☐ **Yes** ☒ **No** (F) **Septic System.** (1) The Property has a private septic system approved for _____ bedrooms. (2) If yes, the dwelling(s) on the Property: **(Answer all.)**
 (a) will have been continuously occupied prior to the inspection to obtain a Certificate/Approval (as defined in Paragraph 12(B)) for the private septic system ("Septic Inspection"); **or**
 (b) will have been vacant for less than 90 days immediately prior to the Septic Inspection **and**
 (i) is serviced by metered water
 (ii) the County Health Dept. has a record of the current private septic system.
 (c) will have been vacant for more than 90 days immediately prior to the Septic Inspection.
- ☐ **Yes** ☐ **No** (G) **Public Sewers.** The Property is connected to public sanitary sewers.
- ☐ **Yes** ☒ **No** (H) **Heating Oil/Propane.** The Property is serviced by heating oil and/or propane.
- ☐ **Yes** ☒ **No** (I) **Gas and Oil Wells.** The Property has an uncapped natural gas and/or oil well, even if inactive.
- ☐ **Yes** ☒ **No** (J) **Oil/ Gas/Mineral Leases.** Seller has received, is receiving or is entitled to receive rents, royalties or other payments and/or free gas under any oil or gas or mineral lease affecting the Property.
- ☐ **Yes** ☒ **No** (K) **Flood Zone.** The Property is currently located in a special flood hazard zone. Note: If Yes, flood insurance will likely be required by an institutional lender.
- ☐ **Yes** ☒ **No** (L) **Radon.** The Property has been tested for radon.
- ☐ **Yes** ☒ **No** (M) **Special Tax/Preservation District.** The Property is located in a Special Tax District and/or Preservation District, namely: _____
- ☐ **Yes** ☒ **No** (N) **Tax Exemption.** (1) The Property tax bill(s) reflect(s) a tax exemption (e.g. STAR, veteran's). (2) If yes, Seller is entitled to the exemption on the most recent tax bills.
- ☐ **Yes** ☐ **No** (O) **Special Tax Assessments.** The Property is subject to assessments for special or local improvements (e.g. sidewalks, water/sewer lines)("Special Tax Assessments").
- ☐ **Yes** ☒ **No** (P) **Vehicular Access.** Vehicular access to the Property is currently by way of:
 (1) a contiguous municipal road right of way.
 (2) a contiguous, shared private road right of way of record.
- ☐ **Yes** ☒ **No** (Q) **Shared Driveway.** The Property is serviced by a shared driveway.
- ☐ **Yes** ☒ **No** (R) **Court Orders.** Seller is currently subject to a court order that prohibits the sale or transfer of the Property without the consent of another person or further court order.
- ☐ **Yes** ☒ **No** (S) **Bankruptcy.** Seller is currently in bankruptcy.
- ☐ **Yes** ☒ **No** (T) **Foreclosure.** The Property is currently the subject of a foreclosure proceeding or a mortgage encumbering the Property that is in arrears in excess of 60 days.
- ☒ **Yes** ☐ **No** (U) **Sufficient Funds.** Including the proceeds from the sale of the Property, Seller has sufficient funds to close this transaction and pay all of Seller's closing costs and expenses.
- ☐ **Yes** ☒ **No** (V) **Code Violations.** Notice from a governmental authority has been issued advising that the Property and/or Current Uses/Improvements (as defined in Paragraph 12(A)) violate applicable building codes and/or zoning ordinances, any of which violations continue as of the Contract Date.
- ☐ **Yes** ☒ **No** (W) **FIRPTA Certification.** Seller is a non-resident alien, foreign corporation, foreign partnership, foreign trust or foreign estate (as defined in the Internal Revenue Code and IRS Regulations).

7. CLOSING FUNDS.

(A) **Purchaser's Representations.** Purchaser represents that except for the proceeds of any financing selected in Paragraph 10 or as otherwise accepted by Purchaser and any Seller's Concession:

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- (1) Purchaser is, and until Closing will be, in **actual possession** of sufficient money in U.S. dollars **on deposit** with a federally insured bank, trust company, savings and loan association or credit union ("Financial Institution") to close this transaction. ☒ **Yes** ☐ **No**
- (2) In order to close this transaction, Purchaser does, or Purchaser's lender may, require:
- (a) the closing of the sale of any other real estate or the discharge of any mortgage for which Purchaser is liable ☐ **Yes** ☒ **No**
- (b) the receipt of a gift of funds ☐ **Yes** ☒ **No**
- (B) **Sale Contingency.** This Contract is contingent upon the sale of other real estate as provided in the *Sale Contingency Rider* ("Sale Contingency") ☐ **Yes** ☒ **No**
- (C) **Closing Contingency.** This Contract is contingent upon the closing of the sale of Purchaser's real estate located at _____ ("Purchaser's Property"). ☐ **Yes** ☒ **No**
- If yes, either Party may cancel this Contract after any material breach, termination or cancellation of the contract for Purchaser's Property or upon proof that the closing of the sale of Purchaser's Property has not occurred within 10 Business Days after the Contract Closing Date (as defined in Paragraph 14(A)). Purchaser shall notify Seller within 3 Business Days after any material breach, termination or cancellation of the contract for Purchaser's Property.

8. **LEAD-BASED PAINT DISCLOSURE.** Seller represents that: *Choose either (A) or (B) below.*
- ☒ (A) **Pre-1978 Construction.** The dwelling(s) on the Property was/were or may have been built prior to 1978. A *Lead Based Paint Rider* **must** be attached to this Contract.
- ☐ (B) **Post-1977 Construction.** The dwelling(s) on the Property was/were built in 1978 or later.

9. **INSPECTION OF PROPERTY AND INCLUDED ITEMS.** *Choose either (A) or (B) below. ("A" if blank).*

				CAUTION: New York law requires that any paid property inspector be properly licensed by the State. The use of a non-licensed inspector or election not to have a property inspection conducted shall be at Purchaser's own risk.
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- ☒ (A) **Property Inspection to be conducted.**
- (1) **The Inspection.** Purchaser shall have the right to have the Property and Included Items inspected and/or tested by inspector(s) chosen and paid for by Purchaser ("Property Inspection") **and** any notice of unsatisfactory results pursuant to Paragraph 9(A)(4) shall be completed within _____ ("**7**" if blank) days following the later of (i) satisfaction or waiver of the Attorney Approval Contingency, or (ii) if all applicable utilities are not in service on the Effective Date, the date Purchaser or Purchaser's attorney receives a notice given by Seller that all applicable utilities are in service ("Inspection Period"). The scope of the Property Inspection shall be determined by Purchaser, but shall not, without the consent of Seller, result in damage to the Property or Included Items. Seller will cooperate with Purchaser's reasonable requests, but need not consent to any damage to the Property or Included Items. The results of the Property Inspection must be satisfactory to Purchaser ("Property Inspection Contingency").
- (2) **Radon Notice.** Radon is a colorless, odorless, tasteless gas that can seep into homes through cracks and openings in a home's foundation. Inhalation of radon gas is associated with increased risk of lung cancer. Testing for the presence of radon in residential real estate prior to purchase is advisable.
- (3) **Radon Test.** The Property Inspection will include a radon test ("**Yes**" if blank). ☐ **Yes** ☐ **No**
- (4) **Notice of Results and Right to Cancel Contract.** If the results of the Property Inspection are not satisfactory to Purchaser for any reason whatsoever, **and** if notice of the unsatisfactory results of the Property Inspection **is received by Seller or Seller's attorney on or before the expiration of the Inspection Period**, either Party may cancel this Contract. The results need not be disclosed. If the notice under this Paragraph 9(A)(4) is not timely received by Seller or Seller's attorney, the Property Inspection Contingency is deemed waived by Purchaser.
- ☐ (B) **No Property Inspection.** Except for the Final Inspection (as defined in Paragraph ATC7), Purchaser elects not to have a Property Inspection conducted. This election shall not be deemed to waive or expand any other rights Purchaser may have under this Contract or at law.

10. **FINANCING.** *Choose all that apply below ("A" if blank).*
- ☐ (A) **No Financing.** Purchaser will close this transaction without financing.
- ☒ (B) **New Loan(s).**
- (1) **Application.** Purchaser shall promptly and in good faith, but in no case later than 10 days ("**5**" if blank) days after satisfaction or waiver of the Attorney Approval Contingency, Property Inspection

			
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Contingency, Lead-Based Paint Inspection Contingency (as defined in Paragraph LBPR5(B)), Sale Contingency and Investigation Contingency, if applicable, make application for and diligently and in good faith pursue and accept a Loan Commitment (as defined in Paragraph 10(B)(3)) for one or more of the following loans (*NOTE: More than one loan type may be selected, but Purchaser need not apply for all loan types selected*) ("Loan"):

- ☒ (a) **First Loan:**
- (i) **Loan Amount** is not to exceed ☐ \$ _____; or ☒ 75 % of the Purchase Price, plus any financed Private Mortgage Insurance, Mortgage Insurance Premium or VA Funding Fee ("Loan Amount").
 - (ii) **Loan Type** is: ☐ Conventional ☐ FHA ☐ VA (See *FHA/VA Option Clause*) ☐ SONYMA; ☒ Other: Commercial ("Conventional" if all blank).
 - (iii) **Loan Term** is: ☒ 30 year; ☐ 20 year; ☐ 15 year; ☐ _____ year ("**30 year**" if all blank).
 - (iv) **Interest Rate** is: (Reference to "prevailing" rate is not permissible)
☒ a fixed rate not to exceed 7.5 % per year for a fixed rate loan, or;
☐ an initial interest rate not to exceed _____ % for an adjustable rate loan.
 - (v) **Loan Discount Fees** are not to exceed _____ ("**0**" if blank) % of the Loan Amount.
- ☐ (b) **Second Loan/Grant** is a _____ year ☐ *Fixed Rate* ☐ *Adjustable Rate* loan/grant in an amount not to exceed ☐ \$ _____; or ☐ _____ % of the Purchase Price with an interest rate (initial or fixed) not to exceed _____ %.
- (2) **Interest Rate Protection.** Provided Purchaser complies with the provisions of Paragraph 10(B)(1), Purchaser may cancel this Contract if, at the time of loan application, Purchaser is not able to lock in at interest rates and loan discount fees at or below the rates and fees set forth in Paragraph 10(B)(1). If an interest rate is not set forth in Paragraph 10(B)(1) or, if Purchaser elects not to lock in an interest rate at the time of application (i.e. to "float"), Purchaser shall be obligated to accept a Loan Commitment for the applicable loan at any available interest rate with any required loan discount fees. Purchaser must lock in an interest rate no later than 10 days before the Contract Closing Date.
- (3) **Commitment.** The written approval of Purchaser's application for a loan must have commitment and interest rate expiration dates after the Contract Closing Date ***and must not be conditioned upon:*** initial underwriting approval by the lender, verification of credit, receipt of an appraisal, payment of debt (other than mortgage(s) encumbering Purchaser's Property if Paragraph 7(A)(2)(a) is answered "Yes"), verification of funds or initial verification of employment ("Loan Commitment"). Purchaser shall deliver to Seller's attorney a ***complete*** copy of the Loan Commitment and notice of its acceptance by Purchaser within 3 Business Days after Purchaser's acceptance of a Loan Commitment. If a Loan Commitment within the terms set forth in Paragraphs 10(B)(1) through 10(B)(2) is not issued to and accepted by Purchaser by (choose either (a) or (b) below ("**b**") if both (a) and (b) blank)
- (a) ☒ 08/12/2026 [insert date]; or
 - (b) ☐ _____ ("**45**" if blank) days after the later of (1) the Effective Date; or (2) satisfaction or waiver of the latest of any applicable (i) Sale Contingency, (ii) Investigation Contingency, (iii) Property Inspection Contingency, or (iv) _____
- ("Loan Commitment Due Date"), either Party may cancel this Contract at any time prior to Purchaser's acceptance of a Loan Commitment on terms the same as or different than those set forth in Paragraphs 10(B)(1) through 10(B)(2). Either Party may cancel this Contract if a Loan Commitment is granted but later cancelled without fault on the part of Purchaser. Purchaser shall promptly notify Seller of any Loan Commitment cancellation.
- (4) **Cooperation.**
- (a) Seller shall promptly and in good faith cooperate with reasonable requests by Purchaser's lender(s) to provide access to the Property and Included Items and to execute documents which, except for the FHA/VA Option Clause, do not modify the terms of this Contract.
 - (b) Purchaser hereby authorizes and agrees to execute any documents required to authorize Purchaser's lender(s) to deliver a complete copy of each Loan Commitment, without any account numbers shown, to Seller's attorney and the Brokers (as defined in Paragraph 19).
 - (c) Prior to Closing, Purchaser shall not intentionally do anything to adversely affect Purchaser's qualification for the Loan (by way of example only, incur any significant additional debt or voluntarily change employment that will result in a disqualification for the Loan.)
- ☐ (C) **Loan Assumption.** A loan is being assumed (See *Loan Assumption Rider*).
- ☐ (D) **Seller Financing.** Seller is holding a purchase money mortgage (See *Seller Financing Rider*).

11. **STATUS OF TITLE.** Purchaser will accept title to the Property and Included Items subject to the encumbrances set forth in Paragraph ATC5 and: _____ ("**Nothing further**" if blank).

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12. IMPROVEMENTS.

(A) **Intended Uses and Improvements.** *CAUTION: This Property may have easements, rights of way and restrictions which may affect intended uses of or improvements to the Property. Purchaser acquires the Property subject to these encumbrances unless intended uses or improvements, different from the current uses and improvements as set forth in Paragraph 3(C) ("Current Uses/Improvements"), are listed below.*

- (1) Purchaser intends to use the Property for a ☐ one ☐ two ☐ three ☐ four -family dwelling or ☒ other Commercial Multi-Use: Two Family Dwelling and Commercial Salon ("Intended Uses").
- (2) Purchaser intends to make the following specific improvements on or modifications to the Property or make the following specific use of the Property (for example, erection of fence, swimming pool or garage, parking of recreational vehicles): _____ ("Intended Improvements").
- (3) If any Intended Uses or Intended Improvements, different from the Current Uses/Improvements, are listed in subparagraphs (1) and/or (2) above, within 10 Business Days after the Effective Date, Seller will provide Purchaser with a copy of Seller's existing survey map and of all restrictions, easements and rights of way affecting the Property as is or should be disclosed in the Search and/or Survey. If Purchaser finds that any restriction, easement or right of way is inconsistent with any of the above-stated Intended Uses or Intended Improvements, then Purchaser may cancel this Contract within 7 Business Days after receipt of (i) a copy of Seller's existing survey map or, if not available, the Survey, and (ii) a copy of all restrictions, easements and rights of way required to be provided by Seller under this Paragraph 12(A)(2).

(B) **Certificates/Approvals.** Seller shall obtain certificates/approvals valid through the date of Closing issued by appropriate governmental authorities evidencing compliance with all applicable laws, ordinances, regulations and codes relating to the Current Uses/Improvements and as disclosed in this Contract (excluding the Intended Uses and Intended Improvements which are different from the Current Uses/Improvements) as required by the appropriate governmental authorities for the transfer of the Property (for example: certificate of occupancy, sump pump certificate and approvals of non-public sewage disposal and water supply) ("Certificates/Approvals"). However, Seller shall have no obligation to supply a certificate of occupancy or certificate of compliance for occupancy of the Property if the Property has been occupied solely as a one or two family dwelling.

(C) **Order and Delivery.**

- (1) **Order.** Certificates/Approvals not already in Seller's possession shall be ordered, all applicable testing and inspections shall be requested, and all applicable application fees shall be paid by Seller no later than 7 Business Days after the later of (i) the Effective Date, and (ii) the satisfaction or waiver of the Attorney Approval Contingency, Property Inspection Contingency, Lead-Based Paint Inspection Contingency, Sale Contingency and Investigation Contingency, if applicable. Any additional fees shall be paid promptly by Seller.
- (2) **Delivery.** Seller shall deliver to Purchaser's attorney a copy of all Certificates/Approvals at least 5 Business Days prior to the Contract Closing Date, except if delayed pursuant to Paragraph 12(D). The originals of all Certificates/Approvals obtained shall be delivered to Purchaser at Closing.

(D) **Objections.** If Purchaser gives Seller notice of valid objection to the legal status or legal use of any of the structures or other improvements located on the Property ("Condition Defects"), or if Seller receives notification from the applicable governmental authority that there is any problem which needs to be corrected before any one or more of the Certificates/Approvals can be obtained ("Corrective Faults"), Seller shall, at Seller's sole expense, correct the Condition Defects and Corrective Faults, and have all necessary governmental inspections completed, prior to the Contract Closing Date. However, Seller may, within 10 Business Days following receipt by Seller or Seller's attorney of a notice of Condition Defects, a notice that Corrective Faults must be corrected, and/or a notice that an inspection cannot be conducted due to weather conditions, governmental delays or governmental policies, notify Purchaser that Seller will not (i) correct the Condition Defects and/or Corrective Faults, and/or (ii) obtain one or more Certificates/Approvals (a "Non-Correction Notice") provided Seller has timely complied with Seller's obligations under Paragraph 12(C)(1), if applicable. If, within 10 Business Days following receipt by Purchaser or Purchaser's attorney of a Non-Correction Notice, Purchaser does not elect to accept the Property and Included Items subject to the Condition Defects and Corrective Faults and without Certificates/Approvals which cannot be obtained, either Party may cancel this Contract. Nothing in this Paragraph 12 is intended to affect the rights of Seller or Purchaser under General Obligations Law Section 5-1311, or as otherwise provided under this Contract.

13. **KEYS.** At Closing, unless the Parties have made other prior satisfactory arrangements, Seller shall deliver to Purchaser all keys, security and access codes, and remote control openers (which must be in working order) for the Property, except as follows: _____ ("**no exclusions**" if blank).

14. CLOSING.

(A) **Closing Date.** Closing shall be at the County Clerk's Office on the date set forth below or, if that date is not a Business Day, on the next Business Day. ("**(2)**" if both (1) and (2) blank). **Time is not of the essence.**

- ☒ (1) 09/16/2026 [insert date], or
- ☐ (2) _____ ("**60**" if blank) days after the later of (a) the Effective Date; or (b) satisfaction or waiver of the latest

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of any applicable (i) Sale Contingency, (ii) Investigation Contingency, (iii) Property Inspection Contingency, or (iv) _____ (the "Contract Closing Date"), or at such other time and place as the Parties mutually agree.

- (B) **Time of Essence Notice.** Either Party (the "Declaring Party") may, at any time after the Contract Closing Date, notify the other Party that time is of the essence, which notice shall set a specific time for Closing on a Business Day that is on or after the 7th Business Day following receipt of the notice by the other Party or the other Party's attorney, provided (i) the Declaring Party has completed each obligation required of the Declaring Party by this Contract to be completed prior to Closing (a "Pre-Closing Obligation"), (ii) the number of days specified in this Contract for the completion of a Pre-Closing Obligation prior to Closing, if applicable, has or will have elapsed following actual completion of the Pre-Closing Obligation, (iii) the number of days available under this Contract to the other Party following the completion of a Pre-Closing Obligation, if applicable, has or will have elapsed following actual completion of the Pre-Closing Obligation, and (iv) the contingencies in this Contract for the benefit of the Declaring Party have been satisfied or waived, or, absent a default by the other Party, will or could be satisfied at Closing.

15. TAXES, ADJUSTMENTS AND CREDITS.

- (A) **Special Tax Assessments.** Purchaser will accept title to the Property subject to, and will pay, all Special Tax Assessments that may be payable in installments not yet due and payable as of Closing. Any Special Tax Assessment payable in installments may be so paid on the installment due date at the election of Seller.
- (B) **Water Charges and Delinquent Taxes.** Seller shall pay all water charges until Closing and all prior fiscal years' taxes and tax assessments, including interest and penalties.
- (C) **Items To Be Adjusted.** There shall be prorated and adjusted, as of 12:00 midnight prior to the date of Closing: rents; royalties; propane; fuel oil; mortgage interest for assumed mortgages; all current fiscal years' taxes, assessments and installments of amounts appearing on current tax bills computed on a fiscal year basis; Special Tax Assessments; flat rate water charges; sewer charges; user fees; license and/or registration fees; and the following items: _____. For adjustment purposes, all rents and royalties due as of the date of adjustment will be considered paid to Seller. If Closing occurs before a new tax rate is fixed, the apportionment of taxes shall be made on the basis of the most recent tax rate applied to the latest assessed valuation and the provisions of Paragraph 15(E) shall not apply.
- (D) **Items To Be Credited.** There shall be assigned and/or credited to the appropriate Party at Closing: security deposits and any accrued interest thereon; assumed mortgage escrows; the principal balance of and any accrued interest on any assumed mortgage; the principal balance of and any interim interest on any mortgage held by Seller; all penalties and interest on current fiscal years' taxes, assessments and Special Tax Assessments due as of Closing; increases in taxes due to an exemption termination, removal or revocation for the period from the date of the loss of the exemption to the date of Closing; any meter purchase fees; and any other credits provided for in this Contract.
- (E) **Post Closing Adjustment.** Any errors and/or omissions in the Closing computations of adjustments, credits and/or taxes, including any increases due to an exemption, termination or removal, which exceed \$100.00 in the aggregate, shall be corrected upon discovery and paid within a reasonable period of time following a demand for payment.
- (F) **Loans.** All loans which appear on any tax and/or utility bill(s) shall be paid in full by Seller prior to or at Closing.

16. RIDERS AND ATTACHMENTS.

This Contract includes the following Riders and attachments marked below:

- ☒ Lead-Based Paint Rider ("LBPR") ☐ Rented Property Rider ("RPR") ☐ Sale Contingency Rider ("SCR")
☐ Vacant Land Rider ("VLR") ☐ Loan Assumption Rider ("LAR") ☐ Seller Financing Rider ("SFR")
☐ Condominium/Homeowners' Association Rider ("CHAR") ☒ Property Condition Disclosure Statement ("PCDS")
☐ FHA/VA Option Clause ☐ Agricultural Disclosure Rider ("ADR")
☐ Other: _____ ("None" if blank)

17. SIGNATURES.

This Contract shall not become binding unless all Parties sign it, initial it (where appropriate) and deliver it so that it is received by all Parties or their respective attorneys no later than 5:00 p.m. on 6/26/26 (If blank, this paragraph is not applicable).

18. ATTACHMENT OF ADDITIONAL TERMS AND CONDITIONS.

- (A) **Receipt and Release.** By initialing this page, the Parties acknowledge having received and reviewed the attached ATC. ***This Contract shall be void if all Parties do not acknowledge below that they received the ATC.***
- (B) **Changes.** Changes ☐ have ☒ have not ("***have not***" if blank) been made to the ATC. If "have not", any changes made to the ATC other than in Paragraphs 1 through 20 or in any Rider or Addendum shall be ineffective.

3887 Seneca St

West Seneca NY 14224-3489

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Seller Initials

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Purchaser Initials

19. BROKERS. The brokers listed below (individually a "Broker" and collectively the "Brokers") are:

LISTING REAL ESTATE BROKER

Steiner & Blotnik Kreag Ferullo
 Broker Agent Lic.#
 NY
 Address
 Office Phone/Fax Brokerage Lic. #
 mkferullo@steinerblotnik.com
 Other Phone E-mail

SELLING REAL ESTATE BROKER

 Broker Agent Lic.#
 Address
 Office Phone/Fax Brokerage Lic. #
 Other Phone E-mail

20. OTHER TERMS. *(If blank, this paragraph is not applicable.)* In the event of a conflict between the provisions of this paragraph and the provisions of any other paragraph of this Contract, the provisions of this paragraph shall control.

1. Main Electric Service Line Repair: The damaged exterior main electric service line shall be repaired and upgraded by a licensed electrician to a condition consistent with current electrical standards at the Seller's sole expense. It is acknowledged that the Seller's electrician is currently coordinating this work with the Town of West Seneca Electrical Inspector, Steve Carmina. The Seller agrees to cover the full cost required to bring the exterior service up to code, ensuring the completed work successfully passes Mr. Carmina's inspection and is deemed acceptable for bank appraisal purposes.

CAUTION: Any Property Condition Disclosure Statement provided by Seller must be delivered to Purchaser and a copy attached to this Contract before Purchaser signs this Contract.

Authentisign
 Seneca Street 3887

06/18/2026

Seller Seneca Street 3887 _____ Date
 Seller _____ Date
 Seller _____ Date
 Seller _____ Date
 Signature of authorized agent of Escrow Agent _____ Date
 Name of authorized agent: Kreag Ferullo

Purchaser Tiffany Durilla _____ Date
 Purchaser _____ Date
 Purchaser _____ Date
 Purchaser _____ Date

Deposit received: ☐ Yes ☐ No
 [Must be signed even if Deposit has not been received.]

SELLER'S ATTORNEY

Steiner & Blotnik Kreag Ferullo
 Firm Attorney
 Address
 Telephone Fax
 mkferullo@steinerblotnik.com
 E-mail address

PURCHASER'S ATTORNEY

Bill Miller Law Bill Miller
 Firm Attorney
 Address
 Telephone Fax
 bill@billmillerlaw.com
 E-mail address

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